

State of Gujarat v. Sandip Omprakash Gupta

Citation: 2025 SCC OnLine Guj 214 | Court: Gujarat High Court | Year: 2025

Coram: Division Bench, High Court of Gujarat | Subject: Criminal Law & Gujarat HC | Provisions: GUJCTOC Act 2015 Sec 23 & BNSS Sec 480

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Under Section 23 of the GUJCTOC Act, prior approval and sanction from an officer not below the rank of DIG/ADGP requires strict, objective evidence establishing continuous unlawful activity by an organized crime syndicate for pecuniary advantage. Mechanical approval invalidates special court proceedings.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding GUJCTOC Act 2015 Sec 23 & BNSS Sec 480. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to GUJCTOC Act 2015 Sec 23 & BNSS Sec 480.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Stringent penal laws altering ordinary bail jurisprudence require meticulous statutory compliance at the threshold. An individual offence cannot be converted into an organized syndicate crime without cogent proof of shared pecuniary gain and collective syndicate hierarchy.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Enforced strict threshold scrutiny on Section 23 GUJCTOC sanction orders in Gujarat.
- â€ Held that solitary or bilateral civil-criminal disputes cannot attract organized crime acts.
- â€ Granted bail where statutory sanction suffered from total non-application of mind.